

	vs. OC Media Tower, L.P. 30-2021-01227550-CU-FR-CJC	
9	Mattatall vs. Brett Dinovi & Associates California, LLC 30-2025-01527131-CU-WE-CJC	Motion to Compel Arbitration and Stay Proceedings Defendant Brett Dinovi & Associates California, LLC's Motion to Compel Arbitration is GRANTED. Plaintiff's evidentiary objections are OVERRULED. Defendant's evidentiary objections are OVERRULED. Plaintiff's request for judicial notice is GRANTED. Defendant seeks to compel arbitration pursuant to Section 17 of an offer letter for the position of Associate Vice President of School Services (Agreement). (Bermudez Decl., ¶ 9, Ex. A.) The parties do not dispute Plaintiff signed the Agreement. Rather, Plaintiff contends the Agreement is both procedurally and substantively unconscionable. "Both procedural unconscionability and substantive unconscionability must be shown, but 'they need not be present in the same degree' and are evaluated on 'a sliding scale.'" (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 246-247 [citations omitted].) <u>Procedural unconscionability</u> While adhesive contracts offered on a "take-it-or-leave-it" basis typically contain some aspect of procedural unconscionability, the degree of procedural unconscionability of an adhesion agreement will be low absent evidence of any other indication of oppression or surprise. (<i>Serpa v. California Surety Investigations, Inc.</i> (2013) 215 Cal.App.4th 695, 704 [citations omitted].) Plaintiff's declaration testimony states she was not informed the Agreement contained an arbitration clause and no one explained to her there were additional terms in the offer or what arbitration meant when she was presented with the offer. (Mattatall Decl., ¶ 4.) Plaintiff does not state she was given insufficient time to read the Agreement or precluded from consulting with counsel or asking questions regarding the Agreement. Nor does Plaintiff contend the Agreement was particularly